

25VECV06604 25VECV06604

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV06604 Hearing Date: September 16, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ESTER MACHADO,

Plaintiff,

vs.

LOS

ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY, and DOES 1 to 100

Defendant.

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CASE NO.: 25VECV06604

ORDER

GRANTING IN PART DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES
(SET ONE)

I.

BACKGROUND

Plaintiff Ester Machado

("Plaintiff") filed this motor vehicle tort action against Defendant Los
Angeles County Metropolitan Transportation Authority ("Defendant").

Defendant moves to

compel further responses from Plaintiff to its Form Interrogatories (Set One).

II.

PROCEDURAL

HISTORY

On November

17, 2025, Plaintiff filed a Complaint alleging (1) Motor Vehicle tort and (2)
Negligence.

On April 23,

2026, Plaintiff filed a First Amended Complaint ("FAC") alleging the same causes of action.

On April 29,
2026, Defendant filed an Answer.

On August 12,
2026, Defendant filed the instant Motion.

On September
2, 2026, Plaintiff filed an Opposition.

On September
8, 2026, Defendant filed a Reply.

III.

LEGAL STANDARD

A.

Interrogatories

A propounding

party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.)² The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid.³ (See Cal. Rules of Court, rule 3.1345(c).)

However,

where a timely motion to has been filed, "the burden is on the responding party to justify any objection or failure to fully answer the interrogatories."⁴ (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.)⁵ "The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party

seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.”²(Columbia Broadcasting System, Inc. v. Superior Court (Rolfe) (1968) 263 Cal.App.2d 12, 19.)

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IV.

TIMELINESS

A notice of motion to compel must be served within 45 days after verified responses, or any verified supplemental responses, were served, unless the parties agree in writing to extend the time. (See Code Civ. Proc. § 2030.300(c).)

Defendant

argues this Motion is timely as the statutory deadline was July 30, 2026, and on that date Plaintiff’s counsel granted an extension to August 13, 2026. (See Mot. at 5:20-6:2; Declaration of Russell Rubin filed August 12, 2026 (“Rubin Decl.”), ¶ 9, Ex. E.)

Plaintiff

argues the Motion is untimely because it was filed after July 29, 2026, the statutory deadline for bringing this Motion based on responses served on June 12, 2026. (See Opp. at 5:12-14; Declaration of Leah Michele Kaufman filed September 2, 2026 (“Kaufman Decl.”), ¶ 3.) Plaintiff’s counsel attests she received a call from Defendant’s counsel on July 30, 2026, during which Plaintiff’s counsel informed him that the deadline had lapsed. (See Kaufman Decl., ¶ 10.) Plaintiff’s counsel attests she afterwards received an email from Defendant’s secretary on July 30, 2026, “confirming” the parties had reached an agreement regarding the extension deadline. (See *id.*, Decl., ¶ 12.) Plaintiff’s counsel attests on August 7, 2026, she once again confirmed in letter the deadline lapsed before Defendant’s counsel contacted her and she also served amended responses to Nos. 6.4 and 10.1 to correct a typographical error. (See *id.*, ¶ 13.)

Defendant

argues the deadline was July 30, 2026. (See Reply the 1:13.) Defendant also argues the Motion is timely because the parties agreed on July 30, 2026, and Defendant would have until August 13, 2026, to file the instant Motion. (See *id.*, at 1:6-7, 2:22-26.) Defendant also argues Plaintiff served amended

responses to Nos. 6.4 and 10.1 on August 7, 2026, and thus the Motion is timely. (See *id.*, at 1:17-19.)

The Court

finds the statutory deadline to bring this Motion, except as to Nos. 6.4 and 10.1, was July 29, 2026. The Court does not find the parties agreed in writing to an August 13, 2026, deadline. Defendant's office emailed Plaintiff's counsel on July 30, 2026, purporting to confirm an extension deadline. (See Rubin Decl., ¶ 9, Ex. E.) However, Plaintiff stated in her August 7, 2026, letter that based on her understanding the deadline was July 29, 2026, she could no longer agree to an extension. However, if the deadline was on July 30, 2026, as Defendant's counsel argued, she would agree to extend the deadline. (See *id.*, Decl., ¶ 10, Ex. F.) Based on these communications, the Court doesn't find the parties agreed to extend the deadline to bring this Motion, as the deadline was July 29, 2026. Thus, the instant Motion, which was filed on August 12, 2026, is untimely, except for Nos. 6.4 and 10.1.

As to these two

requests, the 45-day clock was restarted from the date of service of amended responses on August 7, 2026. Thus, the Motion is timely as to these two requests, which will be addressed below.

V.

MEET AND CONFER

Before

bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes "misuse of discovery process". (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

"A reasonable

and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate." (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, "[a]n

evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

Defendant’s

counsel attests he met and conferred by telephone on July 30, 2026, and exchanged letters with Plaintiff’s counsel on August 7, 10, and 11, 2026. (See Rubin Decl., ¶ 9-11.)

The Court

finds Defendant did not satisfy its meet and confer obligation with respect to the amended responses served on August 7, 2026, because counsel did not confer in person, by telephone, or video conference as to these amended responses. Nevertheless, the Court will address the merits of these two amended responses and reminds counsel to meaningfully engage in meet and confer efforts in person, by telephone, or by video conference.

VI.

ANALYSIS

A.

No. 6.4

This request

seeks information for any consultation, examination, or treatment provided by a health care provider for any injury attributed to the incident including (a) contact information, (b) nature of visit, (c) dates, and (d) charges. (See Sep. Stmt. No. 6.4.)

Plaintiff

responds “yes” and for each subdivision cites Code of Civil Procedure § 2030.230. (See *id.*) Additionally, Plaintiff responds as follows: (a) “various health care providers at Kaiser Permanente are set forth in medical report/summary documents produced in response to Defendant’s Demands for Production and Identification of documents, Demand No. 2. Discovery is continuing”; (b) “various health care providers at Kaiser Permanente examined Plaintiff by prescribing X-ray imaging and Magnetic Resonance Imaging (MRI) for Plaintiff, in addition to physical examination of Plaintiff, as set forth in medical report/summary documents produced in response to Defendant’s Demands

for Production and Identification of documents, Demand No. 2...”; (c) “10/23/2024, 3/2/2025; 8/8/2025; 8/31/2025 and as otherwise set forth in medical report/summary documents produced in response to Defendant’s Demands for Production and Identification of documents, Demand No. 2...”; and (d) “Responding Party does not have personal knowledge sufficient to respond fully to this interrogatory, but has made a reasonable and good faith effort to obtain the information by inquiry to Kaiser Permanente as set forth in medical billing documents produced in response to Defendant’s Demands for Production and Identification of documents, Demand No. 1.” (Id.)

Defendant

argues the response is incomplete and Plaintiff fails to comply with § 2030.230 as the response fails to the specific documents, page numbers, and sections containing the responsive information. (See id.) Defendant also argues Plaintiff’s further response to (d) is warranted as Plaintiff has had more than one year to obtain the corresponding billing records or explain why this information is unavailable.

The Court

finds further response to No. 6.4 is warranted. Code of Civil Procedure § 2030.230 permits a responding party to answer an interrogatory by referencing the statute and “specify the writings from which the answer may be derived or ascertained” “if the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party.” (Code Civ. Proc. § 2030.230.) Although Plaintiff may properly invoke § 2030.230 to the extent that the making of a compilation, abstract, audit, or summary of the document production would cost substantially the same for Plaintiff as it would Defendant, it is clear from the plain language of the statute that its application requires the responding party to “specify the writings from which the answer may be derived or ascertained.” Here, Plaintiff’s response generally refers to all documents produced in response to RFP Nos. 1-2. The Court finds Plaintiff insufficiently specifies the documents containing the information sought.

The Court

finds the substantive portion of Plaintiff’s response to (d) is otherwise code complaint. (See Code Civ. Proc. § 2030.220(c).)

Thus, the
Court GRANTS Defendant's Motion FROGs No. 6.4.

B.
No. 10.1

This request
seeks information concerning prior complaints or injuries involving the same
injured body part in this incident including (a) description for the
complaint/injury, (b) dates, and (c) contact information of the treating health
care provider. (See Sep. Stmt. No. 10.1.)

Plaintiff
responds "Yes. (a) Lower back and left knee pain (b) 2020 to over a year before
the accident; was managing pain, at which point it became chronic and
significantly worse. (c) [citing CCP § 2030.230], Responding Party responds as
follows: treating providers set forth in medical report/summary documents
produced in response to Defendant's Demands for Production and Identification
of documents, Demand No. 2. Discovery is continuing." (Id.)

Defendant
argues the response to (c) is deficient for the same reasons as the above
request.

For the same
reasons above, the Court finds further response to No. 10.1 is warranted as
Plaintiff fails to specify the specific documents and portions of the
referenced documents containing the information sought. Thus, the Court GRANTS
Defendant's Motion FROGs No. 10.1.

C. Sanctions

Given the untimeliness
of the majority of the Motion, Defendant's failure to properly meet and confer with
respect to the amended responses, and the Court's granting of the Motion as to
the amended responses, the Court declines to award discovery sanctions to
either party.

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VII.

CONCLUSION

Based on the foregoing, the Court GRANTS in part Defendant's Motion to Compel Further Responses to its FROGs Nos. 6.4 and 10.1. Plaintiff is ordered to provide further code-compliant responses on or before September 30, 2026.

IT

IS SO ORDERED.

DATED: September 16, 2026

Hon. Michael R. Amerian

Judge,

Superior Court